



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9992 (EXTENSION)
ORIGINAL December 12, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9992 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1992. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.

A. Suzanne Hedges
Alan I. Roberts

Director
Office of Hazardous Materials
Transportation

AUG 31 1990

(DATE)

Dist: FHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

Atochem North America, Inc.
Philadelphia, PA

June 26, 1990



U.S. Department
of Transportation

Research and
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Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

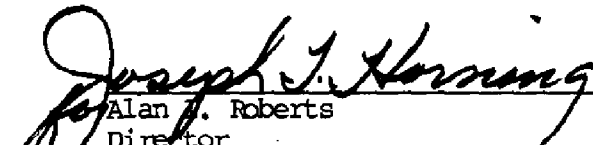
DOT-E 9992

DEC 12 1988

1. Pennwalt Corporation, King of Prussia, Pennsylvania, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of certain Poison B solids for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of Dithiocarbamate pesticides, solid, n.o.s., classed as Poison B, in a bag constructed of coated woven polypropylene with a polyethylene inner bag, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Pennwalt Corporation's application dated May 11, 1988, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Dithiocarbamate pesticide, solid, n.o.s.; classed as Poison B.
4. PROPER SHIPPING NAME (49 CFR 172.101). Dithiocarbamate pesticide, solid, n.o.s.
5. REGULATION AFFECTED. 49 CFR 173.365
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, cargo vessel.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification bag constructed of coated woven polypropylene, with a polyethylene inner bag, having a maximum capacity of 55-pounds. This bag, having approximate dimensions of 24" x 37" x 6" and fabricated in accordance with the construction specifications included in petitioner's application, must be capable of satisfactorily withstanding the performance testing requirements for UN specification 5H3 bag for Packing Group II.
8. SPECIAL PROVISIONS.
 - a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
 - b. A copy of this exemption must be carried aboard each vessel and motor vehicle used to transport packages covered by this exemption.
 - c. Shipments by vessel must be palletized and unitized by means of stretch wrapping and be containerized in freight containers.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. September 30, 1990.

Issued at Washington, D.C.:



Alan J. Roberts
Director
Office of Hazardous Materials
Transportation

DEC 12 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials
Transportation, Research and Special Programs Administration, U.S.
Department of Transportation, Washington, D.C. 20590. Attention:
Exemptions Branch.

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